

Business Development Representative Agreement

Independent Contractor (1099). Editable template. Regenerative Revival.

This Business Development Representative Agreement (the "Agreement") is entered into as of [EFFECTIVE DATE] by and between [COMPANY LEGAL NAME], a [STATE] [ENTITY TYPE] ("Company"), and [REPRESENTATIVE NAME] ("Representative"). Company and Representative are each a "Party" and together the "Parties."

Template note: fields in [brackets] are edited for each representative. The override rates, accounts, and payment terms live in Exhibit A so they can be updated without rewriting the body. Use this for a 1099 contractor (for example, Reggie or Jared), not an employee. This template is a starting point for review by Company's counsel and is not legal advice.

1. Engagement and Services

Company engages Representative as an independent contractor to provide business-development and marketing services: identifying, introducing, educating, and helping manage relationships with facilities, gyms, clinics, and other referral partners for Company's regenerative Services and, where Exhibit A says so, its peptide Products. Representative is not a healthcare provider, does not deliver any medical service, does not set or quote prices other than Company's published prices, and has no authority to sign agreements or bind Company.

The Parties intend that the compensation under this Agreement is for the bona fide business-development and marketing services Representative actually performs, valued at fair market value, and is not a payment for patient referrals. Representative will use only Company's approved partner agreement templates and approved materials when working with partners.

2. Independent Contractor Status

- Representative is an independent contractor, not an employee. Representative controls its own means, methods, and schedule, and may work with other clients.
- Representative is responsible for its own taxes, expenses, equipment, and any insurance, and is not entitled to employee benefits. Nothing in this Agreement creates an employment, agency, partnership, or joint venture relationship.
- Representative will provide a completed Form W-9 before the first payment, and Company will issue a Form 1099 where required.

3. Compensation and Override

- Company will pay Representative the override commission set out in **Exhibit A** (Compensation Schedule).
- Unless Exhibit A states otherwise, the override is in addition to, and not carved out of, any fee Company pays the referral partner on the same transaction.

- The override is earned only on a Completed Transaction (a Service or Product delivered or scheduled and paid for in full, with the refund or cancellation window passed) that is sourced or managed by Representative and verified by Company.
- No override is owed on Representative's own personal purchases, on canceled or refunded transactions, or on amounts Company does not actually collect.
- The Parties may update Exhibit A by mutual written agreement if rates or accounts change. A new signed Exhibit A replaces the prior one going forward; overrides already earned are not affected.

4. Payment Terms

- Company pays earned overrides on the schedule in Exhibit A (default: Net [30] from verification of a Completed Transaction, batched monthly; for peptide overrides, by the [15th] of the month following the sale month).
- Company pays once Representative's payable balance reaches the minimum threshold of [\$ AMOUNT]. Payment method: [ACH / check / other].

5. Clawback and Adjustments

- If a client cancels, refunds, or charges back a transaction, or if Company does not collect the full amount, the related override is reversed.
- Company may offset reversed overrides against future payments or, if none are due, invoice Representative for the amount, payable within [15] days.

6. Compliance and Conduct

Representative agrees to the following at all times, consistent with Company's medical compliance guidelines.

- **No medical advice or claims.** Representative will not give medical advice, diagnose, tell anyone whether they are a candidate, use the words "heal" or "cure," promise or guarantee outcomes, or say a therapy "fixes" a condition. Representative will use education-first language such as "support," "promote," "may help," or "designed to support," and will include a candidacy disclaimer such as "not everyone is a candidate."
- **Approved process only.** Representative will set up partners using Company's approved agreement templates, will use only Company-approved materials and testimonials, and will direct all medical questions to Company's intake and medical team.
- **Disclosures and law.** Representative will make any disclosures that applicable law requires, and will comply with all applicable laws and with Company's compliance guidelines as updated from time to time.

7. Confidentiality and Non-Solicitation

Representative will keep Company's non-public information confidential, including pricing, partner and client lists, business plans, and the terms of this Agreement, and will use it only to perform under this Agreement. During the term and for [12] months after it ends, Representative will not solicit Company's partners or clients to divert business away from Company. This Section survives termination.

8. Term and Termination

- This Agreement begins on the Effective Date and continues for [one year], then renews for successive [one-year] terms unless either Party gives [30] days' written notice of non-renewal.
- Either Party may terminate for convenience on [30] days' written notice, immediately for a material breach not cured within [10] days of notice, and Company may suspend or terminate immediately for a compliance violation.
- On termination, Company pays overrides earned on Completed Transactions before the termination date, subject to clawback. Trailing overrides on accounts after termination: [none / __ months].

9. General

- **Governing law.** This Agreement is governed by the laws of the State of [STATE], without regard to its conflict-of-laws rules.
- **Entire agreement and amendment.** This Agreement, including Exhibit A, is the entire agreement between the Parties and replaces any prior understanding. It may be amended only in a writing signed by both Parties, except that Exhibit A may be updated as described in Section 3.
- **Assignment, notices, severability, counterparts.** Representative may not assign this Agreement without Company's written consent; Company may assign it to an affiliate or successor. Notices must be in writing. If any provision is unenforceable, the rest remains in effect. This Agreement may be signed in counterparts and by electronic signature.

Agreed and accepted:

COMPANY: [COMPANY LEGAL NAME]

By: _____ Date: _____

Name: [] Title: []

REPRESENTATIVE: [REPRESENTATIVE NAME]

By: _____ Date: _____

Exhibit A - Compensation Schedule

Complete this Exhibit for each representative. If rates or accounts change, replace it with a new signed Exhibit A.

Accounts and territory

Representative's accounts or territory (the partners and deals this Representative sources or manages): **[list facilities, gyms, clinics, or territory]**.

Override rates

Complete the rows that apply. Delete any that do not.

Product line	Override to Representative	Earned when	Cap
Stem cell and regenerative Services	[] % of Collected Revenue OR flat \$ [] per Completed Transaction	Treatment completed and paid in full; refund window passed	\$ []
Peptide Products (if applicable)	[] % of Collected Revenue (post-discount), recurring each month the client stays active	Each monthly order is paid and cleared	[12 mo / none]

Note: the override is in addition to any fee Company pays the referral partner on the same transaction, unless stated otherwise here.

Payment

Schedule: Net **[30]** from verification (stem cell), and by the **[15th]** of the following month (peptides).

Minimum payout threshold: \$**[]**. **Payment method:** **[ACH / check / other]**.

Trailing overrides after termination: **[none / __ months]**.

Approved by Company: _____ **Date:** _____

Acknowledged by Representative: _____ **Date:** _____